Widefield School District 3

Request for Proposal (RFP)

26-27-013 Kitchen Equipment Maintenance and Repair

Release Date: 11/11/2026

Solicitation Number: 26-27-013

Solicitation Title: Kitchen Equipment Maintenance and Repair

Questions Deadline: 11/25/2026

Proposal Submission Deadline: 12/11/2026

Acknowledgment and Certification

The undersigned hereby affirms that:

1. They are a duly authorized agent of the vendor.
2. They have reviewed all terms, conditions, and technical specifications provided in this solicitation and fully understand and accept them, except as expressly noted in their proposal.
3. The proposal is submitted on behalf of the vendor in accordance with the terms and conditions of this RFP.
4. The vendor will honor any awards resulting from this proposal for a minimum of ninety (90) calendar days following the submission date.
5. The vendor acknowledges and agrees that it is an independent contractor and that no employment relationship with Widefield School District 3 shall be created by this RFP or any resulting contract.

Company Name: _____

Phone: _____

Address: _____

Date: _____

Printed Name: _____

Title: _____

Email: _____

Authorized Representative Signature: _____

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General Terms & Conditions

By signing and submitting a proposal, all respondents agree to comply with the conditions, requirements, and instructions of this RFP. Any ambiguities or conflicts in the solicitation must be clarified in writing with the Purchasing Manager at least 48 hours before the proposal submission deadline.

1. **Warranty and Quality Assurance:** All professional services provided shall meet or exceed industry standards, comply with applicable laws, and be performed by qualified personnel. The District reserves the right to review, inspect, and approve all work.
2. **Insurance Requirements:** Vendors must maintain all insurance coverages listed in Attachment A, issued by companies licensed in Colorado with A.M. Best ratings of A-VII or higher. All policies must list WSD3 as an additional insured and include a waiver of subrogation.
3. **Compliance:** Vendors shall comply with all applicable federal, state, and local laws, regulations, and codes, and secure all necessary licenses and permits for professional services.
4. **Independent Contractor:** The vendor shall perform services as an independent contractor. Nothing in this RFP or any resulting contract shall create an employment, partnership, or agency relationship between the vendor and Widefield School District 3.
5. **Non-Collusion & Confidentiality:** By submitting a proposal, the vendor certifies that the proposal was developed independently and without collusion. Information may be disclosed pursuant to the Colorado Open Records Act unless properly identified as confidential.
6. **Governing Law and Venue:** This RFP and any resulting contract shall be governed by Colorado law, with venue in El Paso County District Court.
7. **District Rights:** The District reserves the right to reject any proposal, waive irregularities, negotiate terms, select the most qualified vendor, or cancel awards without penalty. The District shall not be liable for any costs incurred by the Proposer in the preparation and production of the proposal or for any work performed before the execution of a contract. All proposals and other materials submitted shall become the property of the District. No reports, information, or data given to or prepared by the selected Proposer shall be made available to any individual or organization by a respondent or the selected Proposer without prior written approval of the District.
8. **Contract Termination:** The District may terminate contracts for cause immediately or without cause with thirty (30) days' notice.
9. **Sustainability:** Vendors should follow environmentally preferable purchasing standards (EPA EPP, Green Seal, LEED) where applicable.
10. **Data Privacy:** Vendors classified as a "School Service Contract Provider" under CRS 22-16-103 must comply with the Student Data Transparency and Security Act.

Project-Specific Terms and Conditions

1. **Submission Format:** Proposals must be submitted electronically via BidNet in PDF format. All content must be legible (minimum 10 pt font) and certified as complete. Late submissions will be rejected. The proposal shall remain the property of Widefield School District.
2. **Purpose:** This RFP solicits proposals for professional services including, but not limited to providing comprehensive diagnostic, repair, emergency response, and preventive maintenance services for commercial kitchen equipment.
3. **Term of Contract:** Proposals may be submitted for 1-year, 2-year, 5-year terms.
4. **Questions:** All questions must be submitted via BidNet. Responses will be published in an addendum.
5. **Award Process:** Any contract award is subject to approval by the District's Board of Education, if required by law, Board policy, or the District's purchasing best practices. Selection will be based on-
    a. Qualifications, licensure, and experience of the firm
    b. Experience providing similar professional services to K–12 or public-sector entities
    c. Qualifications and availability of key personnel
    d. Proposed approach, methodology, and understanding of the District's needs
    e. Past performance and references
    f. Cost, fee structure, and overall value to the District
6. **Evaluation and Selection:** The District will evaluate proposals in its sole discretion and may:
    a. Conduct interviews with selected proposers.
    b. Request clarifications or supplemental information.
    c. Negotiate scope and fee.
    d. Reject any or all proposals.
7. **Appeals:** Vendors may appeal by submitting, in writing, a detailed request for reconsideration to the District's Purchasing Manager within 72 hours after the recommendation of the award is posted on Rocky Mountain E-Purchasing System, provided that the Vendor seeks the appeal before the District finalizes a contract with the selected vendor.
8. **Dispute Resolution:** The Purchasing Manager will settle and resolve any protest concerning the solicitation, consideration, or award of a bid/proposal or controversies arising between the district and a vendor concerning contracts. If deemed necessary, the district council will be consulted. Only protests sent directly to the Purchasing Manager will be considered. Protests of a solicitation must be filed in writing within seven business days of posting. Protests of an award must be filed in writing within seventy-two (72) hours of posting the recommendation and before contract execution.
9. **Contracts:** The selected Proposer must enter into a written contract with the District. All information in this request for proposal and acceptable provisions of the Proposer's response will be attached to and made part of the executed contract.
10. **Background Checks:** All personnel providing services on District property must follow District practices involving background checks.
11. **Permits & Professional Licenses:** Vendors must obtain all required permits, licenses, and maintain professional certifications as required for their scope of services.

12. **Insurance & Indemnification:** See Attachment A. The successful Proposer shall be required to indemnify and hold the District and its agents and employees harmless from and against all suits or actions of any kind, including workers' compensation claims, brought against them for or on account of any damages or injuries received or sustained by any parties, by or from the acts of the successful Proposer or its agents or employees.

13. **Non-Appropriation:** Pursuant to C.R.S.§ 29-1-110, as amended, the financial obligations of the District as set forth hereinafter the current fiscal year are contingent upon funds for the purpose being appropriated, budgeted, and otherwise available. The awarded agreement will automatically terminate on July 1st of the first fiscal year for funds that are not appropriated. The District shall give the Vendor written notice of such non-appropriation.

14. **Equal Opportunity:** The District values equal opportunity in its purchasing practices. Businesses owned and operated by minorities or women are encouraged to submit proposals. Proposers to whom a contract is awarded shall not discriminate based on age, race, color, national origin, gender, creed, or disability.

15. **Gifts & Ethics:** It is a violation of ethical standards for anyone to offer, give, solicit, or accept gratuities, kickbacks, or job offers in connection with any District decision, contract, program, or procurement unless it is for small, promotional items or inexpensive meals. Even small gifts cannot be given in exchange for favorable treatment or influence over contracts, purchasing decisions, or other official duties. This includes employees, former employees (within six months of leaving), contractors, and subcontractors. Any proposal involving such unethical conduct will be disqualified and cannot be reinstated.

16. **Debarment:** Vendors certify that they are not debarred or suspended by any federal, state, or local agency.

Scope of Professional Services

The vendor shall provide professional services as described below:

The selected vendor(s) shall provide comprehensive diagnostic, repair, emergency response, and preventive maintenance services for commercial kitchen equipment.

1. **General Service Requirements & Response Times**
    1. **Standard Work Orders:** Service initiation for all standard work orders, diagnostic assessments, and non-emergency repair requests must occur within **two (2) business days** of the initial request.
    2. **Emergency Refrigeration Services:** Emergency repair requests for refrigeration units (refrigerators, freezers, milk coolers) require a mandatory technician response time within **two (2) hours** of the initial request.
2. **Equipment Scope & Exclusions**
    1. **Included Equipment:** Services cover commercial food service equipment across facilities, including: ovens, ranges, and warmers, refrigerators, freezers, milk coolers, holding cabinets and specialty preparation equipment.
    2. **Excluded Equipment:** Steamers, dishwashers, and sanitation equipment are excluded from this service agreement.
3. **Core Services**
    1. **Diagnostic Assessments:** Timely troubleshooting and root-cause failure analysis of malfunctioning included equipment.
    2. **Repairs:** Complete repair services using Original Equipment Manufacturer (OEM) or equivalent parts to restore equipment to safe working order.
    3. **Preventive Maintenance (PM):** Scheduled maintenance performed every 12 to 48 months, in accordance with manufacturer recommendations. PM services must include:
        1. **Inspection:** Full visual and functional inspection of all electrical, manual, and mechanical components.
        2. **Lubrication:** Proper lubrication of all required joints, bearings, fittings, and moving parts.
        3. **Cleaning:** Removal of dirt, grease, and debris from filters, fans, condenser/evaporator fins, and grates.
        4. **Operational Testing:** Comprehensive testing to verify safe and proper performance prior to returning equipment to service.
        5. **Reporting & Recommendations:** Written documentation detailing all completed maintenance and outlining any additional recommended repairs to maintain OEM specifications, energy efficiency, and safety standards.

4. **Financial Controls, Invoicing & Communication Guidelines**
    1. **Not-to-Exceed (NTE) Limit:** Upon contract award, a Not-to-Exceed threshold of **$1,000.00** per work order will be established. Any work, labor, or parts expected to exceed $1,000.00 require prior written authorization from the Nutritional Services Director or Facilities Department before work can proceed.
    2. **Communication Protocols:** The vendor must check in with designated representatives from the Nutritional Services Department or Facilities Department prior to commencing any work onsite and immediately upon completion of the service call.
    3. **Invoicing Requirements:** All submitted invoices must be fully itemized and include: Detailed documentation of all work performed and diagnostic findings.
    4. Itemized labor hours broken down by applicable labor rates.
    5. Complete list of materials, parts, and equipment used.

Proposal Response Requirements

1. Cover Letter (one-page, official letterhead) signed by an authorized representative
2. Signed Cover Sheet
3. W9 / UEI documentation
4. Exhibits 1–3
5. Proposed Pricing / Fee Schedule
6. References (three relevant projects/customers)
7. Documentation supporting evaluation criteria
8. Redacted version, if applicable
9. Additional attachments, if applicable

Exhibit 1: Confidential Statement

'I/We acknowledge that after the award of this solicitation, all of, or part of this submittal may be released to any person or firm who may request it, as prescribed by the State of Colorado Open Records Act CRS 24-72-201 et seq., as amended, and that:

_____ None of this submittal is considered proprietary and/or confidential

OR

_____The portions/pages of this submittal identified below are proprietary and/or confidential for the reasons stated (cite the specific exemptions allowed by the Colorado Open Records Act/Government Code). ***If this section is selected, a clearly identified redacted softcopy of the original Response is required***.

Page:	Code:	Reason:

General reference to the Freedom of Information Act (FOIA) or Colorado Open Records Act (CORA) is insufficient justification. The District has the final discretion in determining whether information is subject to disclosure under CORA.

I/We acknowledge that the above statements may be subject to legal review and challenge.

The signature below indicates that the applicant has read all the information provided above and agrees to comply in full. This form is considered a section of the Request for Proposal, RFP Click or tap here to enter text.. Therefore, this signed document shall be considered and fully submitted with the original package.

_____ _____

Authorized Representative's Signature Date

_____ _____

Printed Name Title

_____

Company

Exhibit 2: Certification Regarding Debarment, Suspension, and Other Responsibility Matters

The undersigned duly authorized official of the proposer certifies to the best of its knowledge and belief, that it and its principals:

- They are not presently debarred, suspended, proposed for debarment, or declared ineligible or voluntarily excluded from covered transactions by any federal department or agency.
- Are presently active and in good standing on SAMS.gov
- Are required to be in good standing throughout the contract term
- Have not within three years preceding this Response been convicted of or had a civil judgment rendered against them for the commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, or local) transaction or contract under a public transaction; violation of federal or state antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification, or destruction of records, making false statements or receiving stolen property.
- Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (federal, state, or local) with the commission of any of the offenses enumerated in paragraph (B) of this certification; and
- Have not, within three years preceding this application/response, had one or more public transactions (federal, state, or local) terminated for cause or default.
- Are not on the Comptroller General's List of Ineligible Bidders or any similar list maintained by any other governmental entity.
- Where the proposer cannot certify to any of the statements in this certification, such prospective participant shall attach an explanation to this Response.

(Check One)

☐ **I DO CERTIFY** □ **I DO NOT CERTIFY**

_____ _____

Authorized Representative's Signature Date

_____ _____

Printed Name Title

_____

Company

Exhibit 3: Non-Collusion Affidavit

The undersigned duly authorized official of the proposer hereby certifies, to the best of her/his knowledge and belief, that:

1. That I am an officer or employee having the authority to sign on behalf of the corporation, and,
2. That the prices in the attached Response were arrived at independently without collusion, consultation, communication, or any agreement to restrict competition as to any matter relating to such prices with any other proposer or with any other competitor regarding an understanding, or planned standard course of action with any other vendor of materials, supplies, equipment, or service described in the RFP designed to limit independent Responses or competition; and
3. That unless otherwise required by law, the contents and prices contained in the Response have not been communicated by its employees or agents to any person, not an employee or agent, or its surety on any bond furnished with the Response, and will not be communicated to any such person before the official opening of the Response; and,
4. I have fully informed myself regarding the accuracy of the statements made in this affidavit.

☐ I DO CERTIFY ☐ I DO NOT CERTIFY

_____ _____

Authorized Representative's Signature Date

_____ _____

Printed Name Title

_____

Company

Attachment A – Insurance Requirements

Insurance Type	Amount Required	Req	Waived
General Liability	$2,000,000 each occurrence; $2,000,000 general aggregate; $2,000,000 products & completed operations aggregate $50,000 damage to the premises rented to you	X	
Automobile Liability	$1,000,000 for each accident, combined single limit	X	
Workers' Compensation	$500,000 each accident $500,000 disease – policy limit $500,000 disease – each employee	X	
Subrogation Waiver		X	
Umbrella Liability			X
Cyber/Network Security & Privacy Liability	$1,000,000 each occurrence; $2,000,000 general aggregate	X	
Pollution Liability	$1,000,000 each occurrence and aggregate. When the Work involves hazardous materials, environmental remediation, or disturbance of asbestos, lead, mold, or other regulated substances, the Contractor shall maintain Pollution Liability insurance.		X
Professional Liability	$1,000,000 each occurrence and aggregate. If the Contractor provides design, design-assist, or professional services, the Contractor shall maintain Professional Liability (Errors and Omissions) insurance.	X	
Crime Insurance	$1,000,000 single limit		X
Builder's Risk	The Contractor shall purchase and maintain All Risk Builder's Risk insurance upon the entire Project to One Hundred Percent (100%) of the insurable value thereof for the benefit of the Owner and the Contractor.		X